The Hexagram Song in the *Book of Changes* and Administrative Litigation

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Abstract: The Way of the Song hexagram applies not only to modern civil litigation but also to modern administrative litigation. This is because the *Xiang* commentary on the nine in the second place of the Song hexagram explicitly states “one sues his superior from below,” the Western Zhou Dynasty already had the embryonic form of administrative litigation, and administrative litigation is closely related to civil litigation. The basic attitude of the Song hexagram toward administrative litigation is “auspicious in the middle, ominous in the end.” It advocates having no litigation and stopping litigation, while opposing being fond of litigation and exhausting litigation. The initial six and nine in the fourth, nine in the second and nine in the fifth, and six in the third and nine at the top constitute three pairs of lawsuits, reflecting the Song hexagram’s specific attitude toward administrative litigation. The Song hexagram offers insights for administrative litigation. For the plaintiff: “not persisting in the matter” means stopping litigation promptly after clarifying the facts; “returning and fleeing” means reflecting on oneself after losing the case; “eating old virtue” means that claims should be modest and within bounds. For the defendant: “returning, obeying the order and changing” means accepting the judgment after losing the case; “litigation is greatly auspicious” means exercising power legitimately; “or being granted a leather belt, which is stripped away three times in one morning” means that prosecuting the plaintiff in return may accord with temporary policy but will ultimately be rejected. For the judge: “litigation is greatly auspicious” means that handling administrative disputes requires listening to both parties’ opinions and avoiding involvement of personal interests.

Keywords: Song hexagram; administrative litigation; no litigation; centrality and correctness

During the Western Zhou period, from the Son of Heaven downward, disputes over property could arise among dukes, marquises, high officials, lower officials, and commoners. Such disputes included cases between parties of equal rank (e.g., one high official suing another) as well as cases between different ranks (e.g., a high official suing a duke or marquis). All of these fall within the scope of the Song hexagram in the *Book of Changes*. Modern administrative litigation occurs when an individual sues the government for infringement of property or personal rights, which is a case of suing from below against those above. The question is whether the Way of litigation embodied in the Song hexagram applies to modern administrative litigation.

Existing studies on the Song hexagram fall mainly into two categories. The first category sorts out the philosophical ideas of the Song hexagram and their relationship with litigation practice in the Western Zhou. The second category explores the influence of the Song hexagram on contemporary litigation practice. The first type of research follows the tradition of the *Yizhuan* (Commentaries on the *Changes*) and Yi learning, emphasizing the thought of “no litigation.” For example, Yang Yonglin, in “The Song Hexagram of the *Book of Changes* and the Concept of Litigation in Ancient China,” expounded ideas such as despising litigation, the ideal of the

upright official, and the principle that superiors and inferiors should not infringe upon each other.[1] The second type of research shows two sharply opposing tendencies: one uses the Song hexagram's thought of "no litigation" to guide judicial practice and advocates mediation and reconciliation; the other criticizes the Song hexagram's thought of "no litigation," arguing that it contradicts modern rule of law.[2] In recent years, a compromise view has also emerged: litigation has advantages that should be utilized, but its drawbacks must be prevented. For example, Li Ping, in "Re-evaluating 'Litigation' in Chinese Legal Culture—Centered on the Song Hexagram of the *Book of Changes*," opposes the suppression of litigation while supporting mediation and petitions, but does not clarify how to apply the thought of the Song hexagram to specific practice.[3]

This article follows the tradition of the *Yizhuan* and Yi learning. When interpreting the hexagram and line statements, it examines and selects the best among the various explanations offered by commentators across the ages where disputes exist. The Song hexagram has already clarified the Heavenly Way and correct principles concerning litigation, including both the advantages and defects of litigation. Litigants may appropriately choose litigation or reconciliation according to the timing. The main task of this article is, on the premise of accurately understanding the Song hexagram, to apply the Way of the Song hexagram to administrative litigation so as to solve practical problems. The following sections will first argue that the Song hexagram concerns administrative litigation, then analyze the Song hexagram's attitude toward administrative litigation, and finally expound the insights the Song hexagram offers for administrative litigation.

I. Types of Litigation in the Song Hexagram

The basic meaning of "Song" (讼) is to dispute or argue in public.[4] The Song hexagram has Qian above and Kan below; hence the *Tuan* commentary states: "Above is firm, below is perilous; perilous yet resolute—this is Song." The *Xiang* commentary states: "Heaven and water move in opposite directions—this is Song." Dispute means disharmony; thus the *Zagua* commentary says: "Song means not being close."

"Song" has the following three characteristics: First, the object of dispute is property. The *Xugua* commentary holds that "where there is food and drink, there must be litigation." "Song" arises from disputes over "food and drink," which are the most important means of livelihood and the most basic form of property. Zheng Xuan's commentary on the *Zhouli* says: "Disputing crime is called 'prison' (*yu*); disputing property is called 'litigation' (*song*)."[5] Unlike "prison," which disputes criminal acts, the object of dispute in "Song" is property. Second, the cause of litigation is the blockage of sincerity and trust. Xun Shuang explains the hexagram statement "there is sincerity" (*you fu*) as "yang comes to reside in the second place and is sincere toward the initial place."[6] The *Tuan* commentary's "the firm comes and attains the center" refers to the "sincerity" of the nine in the second place. "Sincerity" occupies an important position in the Song hexagram. Litigation arises because sincerity has been blocked; litigation is for the purpose of clarifying facts, proving the legitimacy of one's claim, and demonstrating one's own honesty and trustworthiness. The silk manuscript *Zhong* says: "Song is doubt about virtue."[7] Litigation

arises from doubt about virtue and sincerity, which is consistent with “there is sincerity but it is blocked, and one is apprehensive.” Third, the root cause of litigation is unclear contracts. Regarding the *Xiang* commentary’s “when initiating affairs, plan the beginning,” Gan Bao explains it as “examining the feelings of the people in order to establish institutions” (*Zhouyi Jijie Zuanshu*, p. 121). Liu Bang understood that the people had long suffered under Qin rule, so he made the “three chapters of law” with the people—an agreement between the ruler and the people. Wang Bi’s explanation is clearer: “No litigation lies in planning the beginning; planning the beginning lies in establishing institutions. When contracts are unclear, litigation arises.”[8] “Initiating affairs and planning the beginning” refers to making contracts. Shang Binghe, based on the relationship between contracts and sincerity, considers Wang Bi superior to other commentators.[9]

In the Western Zhou, “Song” concerned disputes over property, and the two parties could be in an equal relationship or a hierarchical (superior-subordinate) relationship. Modern civil litigation is a dispute over property rights or personal rights between individuals. Modern administrative litigation is a dispute over property rights or personal rights between an individual and the government. The Song hexagram concerns not only civil litigation but also administrative litigation, for at least the following three reasons:

First, the *Xiang* commentary on the nine in the second place—“one sues his superior from below”—should include individuals suing the government. From the line statement of the nine in the second place, “his city has three hundred households,” we know that the “below” refers to a high official in a lower social position. The nine in the fifth place is in enemy correspondence with the nine in the second place and should be the other party in the litigation. The nine in the fifth place is a duke or marquis in a higher social position who exercises public power to promote social welfare. “Suing one’s superior from below” means that the high official, in order to protect his personal rights, sues the duke or marquis who exercises public power. The *Book of Changes* is based on the concept of yin and yang. One social manifestation of the yin-yang concept is the superior-subordinate relationship. For example, the Qian hexagram, with all six lines yang, symbolizes the ruler, while the Kun hexagram, with all six lines yin, symbolizes the people. The Qian-Kun relationship is that between the ruler above and the people below. Similarly, in the Tai hexagram, Qian below and Kun above, when the ruler humbly places himself below and regards the people as above, the state will be prosperous and the people at peace. Except during election periods, the relationship between modern government and individuals remains one of superior and subordinate. Therefore, an individual suing the government should naturally be included in “suing one’s superior from below.”

Second, the Western Zhou already saw the embryonic form of the administrative litigation system and prototypes of administrative litigation cases. The *Zhouli · Qiuguan · Da Sikou* states: “Use the lung stone to reach the destitute people. Whenever the distant, solitary, old, or young wish to appeal to those above but their superiors do not convey it, they stand on the lung stone for three days. The officials listen to their words and report to those above, and punish their superiors” (*Zhouli Zhengyi*, p. 2754). The lung stone system was a judicial mechanism to relieve socially weak groups, allowing them to bypass local officials and directly appeal to the

court when suffering injustice, while holding local officials legally accountable. The *Zhouli · Xiaguan · Da Pu* states: “Set up the road drum outside the great sleeping chamber and manage its administration. It is used to await those who wish to reach the destitute and those with urgent orders. When the drum sounds, quickly summon the imperial servants and imperial junior sons” (*Zhouli Zhengyi*, pp. 2498–2499). The road drum system also relieved socially weak groups, since the imperial servants were in charge of “the appeals of the common people” (*Zhouli Zhengyi*, p. 2516). Both the lung stone and road drum systems were mechanisms for the people to sue officials, aimed at controlling local bureaucratic power, protecting the rights of lower-level people, and maintaining the rule of the Zhou royal house. The administrative litigation system originated in English common law, initially to implement the king’s central decrees, control local feudal lords, and safeguard royal interests. Only later, with the victory of the nobility over the king in Parliament, did ordinary courts begin to issue judgments restricting royal power. The Western Zhou mechanisms for the people to sue officials are highly similar to early English administrative litigation and can be regarded as the embryonic form of the administrative litigation system. Not only does the *Zhouli* stipulate mechanisms for the people to sue officials, but actual cases of the people suing officials also appeared in the Western Zhou. In February 1975, the inscription on the “Zhen Yi” bronze vessel unearthed in Qishan County, Shaanxi Province, records a case in which a herdsman persistently sued his superior Zhen. The case eventually reached the royal court, where Bo Yangfu handled it. The herdsman lost because he violated his oath and bore adverse consequences.[10] This case occurred in the late Western Zhou, a time of political corruption and popular rebellion. The herdsman’s lawsuit against his superior was very likely due to the superior’s abuse of power. The case was handled by the highest authority and cast in bronze inscription, indicating its great importance to the Zhou king. It involved not only personal property but also ruling order and administrative power. In administrative litigation cases, the individual sues the government—right confronts power—in a binary opposition, equivalent to the *Book of Changes* concepts of “yin and yang contending,” “dragons fighting in the wild,” or “suing one’s superior from below.” In a rule-of-law country, if a civil servant is dismissed, he or she may file an administrative lawsuit because personal rights have been infringed by government power. The herdsman believed his personal rights were infringed by his superior’s power and sought judicial relief—this is “suing one’s superior from below” and can be regarded as a prototype of an administrative litigation case.

Third, administrative litigation has an intrinsic connection with civil litigation. Civil litigation arises between individuals due to unclear contracts and lack of sincerity. Between individuals and the government there are also issues of contract and sincerity. The 1215 Magna Carta was a contract forced upon the king by the nobility, and its final clause required the king to observe all provisions honestly and in good faith. In the 17th and 18th centuries, Enlightenment thinkers such as Hobbes, Locke, and Rousseau expounded the social contract theory: in order to protect life and property, people enter into a contract to establish government; if the ruler violates the contract, the people have the right to overthrow the government. In the field of administrative law, individuals face the administrative branch of government, where contract and sincerity issues also exist. The most typical example is administrative contracts, in which individuals and administrative organs enter into contracts and honestly and in good faith provide services,

property, or funds to each other. Although administrative organs enjoy administrative priority rights, they must also bear corresponding responsibilities. Even in the field of administrative penalties, contract and sincerity issues exist. For example, Article 5 of the current *Administrative Penalty Law* stipulates that administrative penalties must be commensurate with the degree of social harm of the illegal act—this is a contract between the government and the individual. In the case of drunk driving, this contract is manifested as: drunk driving shall be fined and the driver's license suspended. If someone who drove drunk tries to pay only the fine while keeping the license, that violates the contract and lacks sincerity. Similarly, if the government pursues criminal liability for drunk driving, that also violates the contract and lacks sincerity. Therefore, like civil litigation, the root cause and reason for administrative litigation is also unclear contracts and lack of sincerity. In terms of China's administrative litigation legislation, Professor Jiang Ping is an authority in civil law. He participated in drafting the *General Principles of Civil Law* in his early years and was later appointed head of the drafting group for the *Administrative Litigation Law*. Article 101 of the current *Administrative Litigation Law* still provides: "Where this Law is silent, the relevant provisions of the *Civil Procedure Law* shall apply." Both administrative litigation and civil litigation aim to protect property rights and personal rights. The difference is that administrative litigation targets the government, while civil litigation targets others or organizations other than the government. In a certain sense, administrative litigation is a derivative or special form of civil litigation.

II. The Song Hexagram's Attitude Toward Administrative Litigation

The basic attitude of the Song hexagram toward administrative litigation is embodied in the hexagram statement "auspicious in the middle, ominous in the end." For the parties, even if the litigation is auspicious in the middle stage, the final outcome is ominous. Therefore, the best situation is to have no litigation. Confucius, who once served as Grand Minister of Justice in Lu, said: "In hearing litigation, I am like other men. What is necessary is to cause there to be no litigation!"[11] In order to achieve no litigation, one must "when initiating affairs, plan the beginning," establish institutions, and clarify contracts (*Zhouyi Zhu*, p. 41). If one has no choice but to enter litigation, one should stop litigation promptly during the process and seek compromise and reconciliation—this is the essence of "auspicious in the middle." The worst situation is being fond of litigation and exhausting all avenues of litigation—this is the essence of "ominous in the end."

The specific attitude of the Song hexagram toward administrative litigation is embodied in the six lines. The initial six and nine in the fourth form a correct correspondence. Wang Bi holds that the initial six "is summoned by the fourth and responds; seeing infringement, one litigates," while the nine in the fourth "is above and litigates against those below" (*Zhouyi Zhu*, pp. 41, 42). Lu Shi and Hou Guo hold similar views (*Zhouyi Jijie Zuanshu*, pp. 122, 125). The nine in the second and nine in the fifth form an enemy correspondence. The nine in the second "sues his superior from below; calamity arrives but is stopped," where "superior" refers to the nine in the fifth. The six in the third and nine at the top form a correct correspondence. The six in the third "follows the one above—auspicious," while the six in the third obeys the nine at the top, but the nine at the top is fond of litigation and countersues the six in the third. Qiu Fuguo says: "Only

the nine at the top is at the end of the hexagram; below it confronts the third. The yielding cannot resist the firm, hence there is the statement about being granted a leather belt."[12] It is clear that the two lines in correct or enemy correspondence constitute the two parties in a lawsuit. Thus the six lines form three pairs of lawsuits, i.e., three situations:

First, initial six versus nine in the fourth. "Initial six: Do not persist in the matter. There are small words. In the end, auspicious." Do not prolong the litigation. There is a small dispute; after clarifying right and wrong, the final outcome is auspicious. Regarding "small words" (*xiao you yan*), Yu Fan believes "the initial and fourth exchange positions to form Zhen, which is words" (*Zhouyi Jijie Zuanshu*, p. 122). Lu Shi explains it as "small litigation" (*Zhouyi Jijie Zuanshu*, p. 122). Wang Bi notes it as "at the beginning of litigation" (*Zhouyi Zhu*, p. 41). Kong Yingda comments that "the matter of litigation is still slight."[13] Lai Zhide notes it as "verbal clarification."[14] Shang Binghe holds that "having words means litigation."[15] "Yan" should be understood as "litigation." The initial six is yin in a yang position and avoids the word "litigation," just as this line uses "matter" instead of "litigation." "Nine in the fourth: One cannot win the litigation. Return and obey the order. Change. Auspicious if one is steadfast and correct." One does not win the lawsuit, returns and obeys the judgment, changes one's mindset, and it is auspicious if one is steadfast and correct. Regarding "obey the order" (*fu ji ming*), Yu Fan believes "changing forms Xun, and Xun is command" (*Zhouyi Jijie Zuanshu*, p. 125). Wang Bi notes it as "original principle" (*Zhouyi Zhu*, p. 42). Cheng Yi explains it as "correct principle."[16] Lai Zhide notes it as "the correct principle of Heaven's mandate."[17] "Ming" should be understood as the judgment. The judgment is a decision made by the Grand Minister of Justice on behalf of the ruler and is an order to the parties. If the judgment is fair, it necessarily contains correct principle. In the lawsuit between the initial and the fourth, because litigation consumes time and energy, the plaintiff does not engage in prolonged litigation. At the beginning of the litigation (e.g., first instance), the facts are clarified and litigation is used only as a means to achieve justice, after which litigation is promptly stopped—the result is auspicious. The defendant unreasonably infringed upon the plaintiff and did not win the lawsuit; by obeying the judgment and remaining steadfast in correctness, the outcome is also auspicious.

Second, nine in the second versus nine in the fifth. "Nine in the second: One cannot win the litigation. Return and flee. His city has three hundred households. No disaster." The high official does not win the lawsuit, returns and hides himself. His three hundred households are not implicated and thus suffer no disaster. Regarding "calamity arrives but is stopped" (*huan zhi duo ye*) in the *Xiang* commentary, there are two main interpretations. The first is "to pick up," as Xun Shuang says: "The lower contends with the upper and thereby picks up calamity and harm, like picking up small things without losing them" (*Zhouyi Jijie Zuanshu*, p. 123). This interpretation implies that no matter whether the subordinate is justified or not, suing from below always brings disaster. Such a thorough negation of suing superiors clearly conflicts with the lung stone and road drum systems. The second interpretation is "to stop," as Shang Binghe says: "If taken as 'stop,' it precisely explains the meaning of fleeing. One flees and stops the litigation; since the litigation stops, there is no disaster."[18] This interpretation emphasizes stopping litigation, which accords with both the line statement "no disaster" and the hexagram statement "auspicious in the middle," and is therefore more reasonable. "Nine in the fifth:

Litigation. Greatly auspicious." Here "litigation" has two interpretations. One is "to adjudicate litigation," for example, Wang Su says: "With the virtue of centrality and correctness, one regulates the custom of contending and quarreling—greatly auspicious" (*Zhouyi Jijie Zuanshu*, p. 125). Hou Guo says: "The great man refers to the fifth; his judgments are necessarily centered, hence beneficial to see" (*Zhouyi Jijie Zuanshu*, p. 120). Wang Bi says: "Occupying the honored position, he is the master of litigation. Using his centrality and correctness, he decides what is crooked and straight" (*Zhouyi Zhu*, p. 42). Although Zhu Xi also interprets "litigation" as "hearing litigation," the divinatory judgment points to the litigant: "If one litigates with reason, one will surely obtain redress."[19] The other interpretation is "to participate in litigation," as Wang Fuzhi says: "Firm, resolute, centered, and correct, with no loss of virtue from the beginning. Even if sued from below, no harm can be done; auspiciousness is inherent."[20] The "litigation" of the nine in the fifth should refer to one party participating in litigation, for three reasons: (1) the nine in the second and nine in the fifth are in enemy correspondence and are the two contending parties; if the nine in the second is the plaintiff, the nine in the fifth is the defendant; (2) the line statement says "litigation, greatly auspicious"—"litigation" here simply means litigating or suing, while presiding over judgment is "hearing litigation," a term already existing in the Western Zhou; (3) the nine in the fifth is greatly auspicious because of "centrality and correctness," being impartial and selfless and exercising power legitimately. As the defendant, the local chief is like the "flying dragon in the sky" of the Qian hexagram's nine in the fifth—both "greatly auspicious" and "beneficial to see the great man." When a local chief handles public affairs, such as building a water channel, if he listens to the people's opinions and meets their needs, he is the nine in the fifth in that matter. If someone believes the construction infringes on his interests (e.g., occupying his land) and appeals to the court, the Son of Heaven exercises power and handles the dispute fairly—at that moment the Son of Heaven is the nine in the fifth. The nine in the fifth of the Qian hexagram can represent either the exercise of administrative power or judicial power, but the nine in the fifth of this hexagram clearly refers to the local chief exercising administrative power. In the lawsuit between the second and fifth, the plaintiff (the high official) is a person of "sincerity." Initially he thought the local chief had infringed on his interests, but after losing the case he recognized his own fault, returned and hid himself. Thus, although he lost, there were no serious consequences. The defendant is a person of "centrality and correctness" who exercises power legitimately; even if sued, he will win and therefore enjoys auspiciousness.

Third, six in the third versus nine at the top. "Six in the third: Eat old virtue. Persevering brings danger, but in the end auspicious. Or, if one serves the king's affairs, achieve no success." Enjoy the previous emoluments, persevere in the correct path—though there is danger, the end is auspicious. Or, if one serves the king's affairs, attribute the achievement to those above so as to end well. Regarding "eat old virtue," Yu Fan believes "Qian is old virtue" (*Zhouyi Jijie Zuanshu*, p. 124). Li Daoping comments: "eating the former emoluments of one's father" (*Zhouyi Jijie Zuanshu*, p. 124). Wang Bi notes: "obedient to the one above, not suing the superior from below like the nine in the second" (*Zhouyi Zhu*, p. 42). Cheng Yi explains: "Emoluments are received according to virtue. Eating old virtue means staying within one's proper station."[21] Zhu Xi explains: "Eat is like the 'eat' in fief—meaning what one enjoys."[22] The various explanations are largely consistent: emoluments come from the ruler; subjects enjoy

emoluments according to their merit and virtue. Enjoying previous emoluments means obeying the ruler and staying within one's proper station. "Nine at the top: Or one is granted a leather belt, but it is stripped away three times in one morning." If, because of winning the lawsuit, one is granted an official robe, it will be stripped away three times in a single day. Winning through fondness for litigation does not bring welfare to others but seizes others' property. If one is rewarded for this, it is not worthy of respect. Yu Fan believes "granting refers to the king's granting of mandate" (*Zhouyi Jijie Zuanshu*, p. 126). Xun Shuang believes the one who strips is the "ruler" (*Zhouyi Jijie Zuanshu*, p. 126). Thus, both the granting and stripping of the official robe are done by the ruler. In the lawsuit between the third and the top, the plaintiff stays within his proper station, avoids litigation, and only becomes involved when necessary in order to preserve his existing interests and seeks nothing more. The defendant is aggressive and fond of litigation, taking pleasure in lawsuits and glory in victory. Although he may temporarily receive promotion and honor, he will eventually lose power, because contending for profit with those below is not a political achievement—benefiting the common people is the foundation of governance. In the lawsuit between the third and the top, the plaintiff begins with "danger" but ends with "auspiciousness," while the defendant begins with "granting" but ends with "stripping." Although the defendant wins the lawsuit, because he violates the Heavenly Way and correct principle, he ultimately fails and thus faces an ominous outcome. It can be seen that through litigation, the parties can maintain their old interests but cannot obtain new interests. In other words, the value of litigation lies in protecting rights rather than expanding rights.

III. Insights of the Song Hexagram for Administrative Litigation

The Song hexagram offers insights for administrative litigation for three reasons. First, from the perspective of the *Book of Changes* itself, the *Xici* commentary says: "Heaven hangs down its images, revealing good fortune and misfortune; the sage imitates them."[23] Heaven informs people of the Heavenly Way and correct principles through images. How does the sage "imitate them"? The *Xici* also says: "The sage establishes the hexagrams, observes the images, appends statements to them, and thereby clarifies good fortune and misfortune." How does he "establish the hexagrams"? The *Xici* further says: "He exhausts the numbers, and thereby determines the images of all under Heaven." The hexagram and line images used to imitate heavenly phenomena originate from the four numbers (6, 7, 8, 9) obtained through the Great Expansion divination method. Therefore, the hexagram and line images are universal and transcend civilizations. If a sage appeared in the West today who did not know Chinese characters and was unfamiliar with the line statements appended by King Wen and the Duke of Zhou, he could still, based solely on the hexagram and line images, write line statements that accord with the Heavenly Way. King Wen and the Duke of Zhou were historical figures; the line statements they appended were products of their era. The things referred to in the line statements (such as city households or leather belts) may no longer exist, but because the Heavenly Way and correct principles reflected in the line statements are eternal and transcend history, as long as appropriate interpretations are made—for example, analogizing "city households" to family members and generalizing "leather belt" to interests—the statements can apply to the present. In the case of the Song hexagram, both the hexagram/line images and the hexagram/line statements reflect the correct principles of administrative litigation. For example,

in the three pairs of lawsuits formed by the six lines of the Song hexagram, each pair has one winner and one loser. Of course, winning/losing and auspicious/ominous are not the same thing. Auspiciousness or ominousness depends not only on the objective circumstances of the case but also on the subjective attitude of the parties.

Second, from the perspective of historical transmission, the era of King Wen and the Duke of Zhou was a major period of institutional and cultural transformation. After the Zhou replaced the Shang, they implemented the feudal enfeoffment system. The *Book of Changes* created by King Wen and the Duke of Zhou contains fundamental ideas for governing the state and bringing peace to the realm. When the King of Qin unified the six states, he burned books and buried scholars alive; only the *Book of Changes* survived the Qin fire unscathed. For more than two thousand years thereafter, successive dynasties used the commandery-county system and continued the tradition of the *Book of Changes*. Can the *Book of Changes* apply to the current system and guide contemporary practice? The current system inherits at least as much from the commandery-county system as the commandery-county system inherited from the enfeoffment system. Since the *Book of Changes* could apply to the commandery-county system, it can apply to the current system. In fact, the central government has consistently called for the promotion of traditional culture. As the source of traditional culture, the *Book of Changes* should naturally guide contemporary practice. Burke and Paine had a fierce debate about the French Revolution. Based on England's gradualist constitutional background, Burke believed that the French Revolution not only destroyed the old system but also damaged cultural traditions.[24] After one and a half centuries of political turmoil, France only established a stable democratic system after World War II. In contrast, Britain, which valued historical traditions, was much more fortunate. As far as the Song hexagram is concerned, its thought of "no litigation" applies not only to the commandery-county system but also to the current system.

Third, from the perspective of reality, China's administrative litigation has many problems. To solve these problems, we have two sources of experience: outstanding achievements of other civilizations and the essence of traditional culture. In recent decades, legal scholarship has been keen on using Western experience to examine Chinese reality and has achieved many results. However, the Western model itself also has problems—for example, courts are overloaded with cases and cannot handle them promptly. We urgently need to excavate the essence of traditional culture to provide reference for solving practical problems. As far as the Song hexagram is concerned, when administrative officials or judges exercise power, they must be "centered and correct." If administrative officials are "centered and correct," there will be no administrative disputes. If judges are "centered and correct," administrative disputes can be handled fairly. This holistic thinking helps solve practical problems.

The specific problems existing in China's administrative litigation involve three aspects: plaintiff, defendant, and judge. The following discusses the insights of the Song hexagram for administrative litigation from these three aspects.

First, regarding the plaintiff. (1) The initial six of the Song hexagram—"Do not persist in the matter. There are small words. In the end, auspicious"—means the plaintiff has no need to be

obsessed with litigation. As long as the facts are clarified at the beginning of the litigation and litigation is stopped promptly, the final outcome will be auspicious. In reality, some plaintiffs are fond of litigation and exhaust it, filing multiple lawsuits for a single purpose, most of which provide no substantial help toward that purpose, and they persist in all of them to the end—thus the final outcome is ominous. (2) The nine in the second—"One cannot win the litigation. Return and flee. His city has three hundred households. No disaster"—means that after losing the case, the plaintiff should return, reflect on himself, and assess the situation. In reality, some plaintiffs, after losing a lawsuit, use petitions and the internet to attract central government and public opinion attention. Such rash actions may bring disaster and even implicate family members. (3) The six in the third—"Eat old virtue. Persevering brings danger, but in the end auspicious"—means staying within one's proper station and not making excessive demands, so that the final outcome will be auspicious. In reality, some plaintiffs make excessive claims. For example, when local governments develop collective land in suburban areas and compensate houses according to collective land standards, some plaintiffs demand compensation according to state-owned land standards. State-owned land standards exceed the original value of the houses; such claims are excessive and will inevitably result in defeat.

Second, regarding the defendant. (1) The nine in the fourth—"One cannot win the litigation. Return and obey the order. Change. Auspicious if one is steadfast and correct"—means that if the defendant loses the lawsuit and obeys the judgment while changing his mindset, the outcome will be auspicious. In reality, after losing a case, the government sometimes refuses to admit error or fulfill the judgment—such an outcome will be ominous. Article 96 of China's *Administrative Litigation Law* stipulates the legal consequences when administrative organs refuse to fulfill judgments, including criminal liability. (2) The nine in the fifth—"Litigation. Greatly auspicious"—means the defendant exercises power legitimately, which is extremely auspicious. In reality, the government sometimes does not abuse power; its actions comply with legal provisions and legal principles. In such cases, even if sued by the administrative counterpart, it will ultimately win. (3) The nine at the top—"Or one is granted a leather belt, but it is stripped away three times in one morning"—means that being rewarded by superiors because of litigation is not a long-term path. In reality, the government sometimes not only obstructs parties from suing but also countersues the parties for crimes. A common practice is to accuse parties of "picking quarrels and provoking trouble." If the government's accusation is supported by the court, it may accord with temporary policy, but it violates natural justice and will ultimately be rejected.

Third, regarding the judge. The thought of "centrality and correctness" in the nine in the fifth's "litigation is greatly auspicious" is the basic requirement for exercising any power. It applies not only to administrative officials but also to judges. When judges handle administrative disputes, they need to listen to both parties' opinions and must not involve their own interests. The exercise of judicial power should be independent of administrative power and unified nationwide. However, China's judiciary suffers from the drawbacks of administrativeization and localization. Courts at all levels are to some extent subject to governments at corresponding levels, and judicial independence is quite limited. China is currently promoting the Fengqiao Experience. On the one hand, the mediation methods of the Fengqiao Experience embody the

thought of “no litigation” and help save judicial resources and litigation costs. On the other hand, the mass-line approach of the Fengqiao Experience has certain tensions with the spirit of the rule of law and may exacerbate the administrativeization and localization of the judiciary.

EndNotes

[1] Yang Yonglin, “The Song Hexagram of the *Book of Changes* and the Concept of Litigation in Ancient China,” *Zhouyi Yanjiu*, 2008, no. 6, p. 81.
[2] Fang Xiao, “A Corrected Discussion of ‘Song’ in the Song Hexagram,” *Fazhi yu Shehui Fazhan*, 2011, no. 5, p. 131.
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[21] Cheng Yi, *Zhouyi Chengshi Zhuan*, p. 39.
[22] Zhu Xi, *Zhouyi Benyi*, p. 61.
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《周易》讼卦与行政诉讼

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摘要：讼卦之道不仅适用现代民事诉讼，还适用现代行政诉讼，这是因为讼卦九二《象传》直言“自下讼上”、西周已有行政诉讼雏形以及行政诉讼与民事诉讼关系密切。讼卦对行政诉讼的基本态度是“中吉，终凶”，提倡无讼和止讼，反对好讼和穷讼。初四、二五以及三上构成三对诉讼，体现讼卦对行政诉讼的具体态度。讼卦对行政诉讼有所启示，在原告方面，“不永所事”意味着在讲明事理后要及时止讼，“归而逋”意味着在败诉后要反省自身，“食旧德”意味着诉求要本分；在被告方面，“复即命渝”意味着在败诉后要遵从判决，“讼元吉”意味着正当行使权力，“或锡之鞶带，终朝三褫之”意味着反过来公诉原告，可能符合一时政策，但最终会被否定；在法官方面，“讼元吉”意味着处理行政争议，需要听取双方意见，并且不要牵扯自身利益。

关键词：讼卦、行政诉讼、无讼、中正

西周时期，自天子以下，公侯、大夫、士和庶人之间都有可能因财产而发生争讼，这种争讼既包括同等级别之间的情形，如大夫诉大夫，也包括上下级别之间的情形，如大夫诉公侯，这些都属于《周易》讼卦的范畴，而现代行政诉讼是个人因财产或人身受到侵犯而起诉政府，属于自下告上，问题是，讼卦所体现的诉讼之道是否适用现代行政诉讼？

关于讼卦的已有研究，主要涉及两类，一是梳理讼卦哲学思想及其与西周诉讼实践的关系，二是探讨讼卦对当下诉讼实践的影响。第一类研究遵循《易传》及易学传统，强调无讼思想，例如，杨永林在《〈周易〉讼卦与中国古代的诉讼观念》中阐述了贱讼、清官以及尊卑不犯等思想。[1]第二类研究存在两个截然相反的倾向，一是以讼卦无讼思想指导司法实践，提倡调解、和解，二是批判讼卦无讼思想，认为讼卦无讼思想与现代法治相悖。[2]此外，近年来还出现了折中观点：既要发挥诉讼的优点，又要防止诉讼的弊端，例如，李平在《重估中国法文化中的“讼”——以〈周易〉讼卦为中心》中既反对压制诉讼，又支持调解和信访，但是没有阐明如何把讼卦思想应用于具体实践。[3]

本文遵循《易传》及易学传统，在解释卦爻辞时，对于历代注家有争议的地方进行考辨，择善而从。讼卦业已阐明有关诉讼的天道和正理，包括诉讼的优势和缺陷，争讼者可根据时机适当选择诉讼或和解。本文的主要任务是，在准确理解讼卦的前提下，把讼卦之道应用于行政诉讼，以解决实际问题。本文接下来将论证讼卦应当关乎行政诉讼，然后分析讼卦对行政诉讼的态度，最后阐明讼卦对行政诉讼的启示。

一、讼卦的诉讼类型

“讼”的基本含义是争辩，言之于公。[4]讼卦上乾下坎，故有《彖传》之“上刚下险，险而健，讼”以及《象传》之“天与水违行，讼”。争辩即不和，故有《杂卦传》之“讼，不亲也”。

“讼”有以下三个特征：其一，争辩对象是财产。《序卦传》认为“饮食必有讼”，“讼”是因“饮食”而起争执，而“饮食”是最重要的生活资料，也是最基本的财产。郑玄注《周礼》曰：“争罪曰狱，争财曰讼。”[5]与“狱”争辩罪行不同，“讼”的争辩对象是财产。其二，诉讼原因是信实被窒塞。荀爽对卦辞“有孚”的解释是“阳来居二而孚于初”[6]，《彖传》之“刚来而得中”是讲九二之“孚”，“孚”在讼卦中占据重要地位，诉讼是因为信实被塞止，诉讼就是为了辨明事实，证明己方诉求正当，同时表明本人诚实可信。帛书《衷》曰：“容（讼）者，得（德）之疑也。”[7]诉讼起因于德信被怀疑，与“有孚窒惕”一致。其三，诉讼根源是契约不明。对于《象传》之“作事谋始”，干宝解为“省民之情，以制作也”（《周易集解纂疏》，第 121 页），刘邦了解天下苦秦久矣，于是与百姓约法三章，约法三章是君王与百姓之间的一种契约。王弼的解释更为明确：“无讼在于谋始，谋始在于作制。契之不明，讼之所以生也。”[8]作事谋始即指制作契约。尚秉和基于契约与诚信的关系，认为王弼优于其他各家。[9]

西周之“讼”所争辩的是财产，争讼双方既可能是平等关系，也可能是上下关系。现代民事诉讼是个人之间争辩财产权或人身权，现代行政诉讼是个人与政府争辩财产权或人身权。讼卦不仅涉及民事诉讼，还涉及行政诉讼，理由至少有以下三个：

第一，九二《象传》“自下讼上”应当包含个人诉政府。根据九二爻辞“其邑人三百户”可知，“下”是处于社会下位的大夫，九五与九二敌应，应为诉讼的另一造，九五是处于社会上位的公侯，行使公共权力，促进社会福祉，“自下讼上”就是大夫为了维护个人权利，起诉行使公共权力的公侯。《周易》以阴阳观念为基础，阴阳观念在社会关系上的一种反映是上下关系，例如六爻皆阳的乾卦象征君王，六爻皆阴的坤卦象征民众，乾坤关系即是君上与下民的关系；再如泰卦，下乾上坤，君王谦卑处下，以民为上，就会国泰民安。除非在选举期间，现代政府与个人之间仍是上下关系，个人诉政府，理应被包含在“自下讼上”之中。

第二，西周时期已出现行政诉讼制度的萌芽和行政诉讼案件的雏形。《周礼·秋官·大司寇》曰："以肺石达穷民。凡远近茕独、老幼之欲有复于上，而其长弗达者，立于肺石三日，士听其辞，以告于上，而罪其长。"（《周礼正义》，第 2754 页）肺石制度是一种救济社会弱者的司法机制，允许他们在遭遇冤屈时越过地方官员、直接向朝廷申诉，并追究地方官员的法律责任。《周礼·夏官·大仆》曰："建路鼓于大寝之门外，而掌其政。以待达穷者与遽令。闻鼓声，则速逆御仆与御庶子。"（《周礼正义》，第 2498-2499 页）路鼓制度救济的对象仍是社会弱者，因为御仆掌管"庶民之复"（《周礼正义》，第 2516 页），庶民是一般民众，包括"穷者"。肺石与路鼓制度都是民告官机制，目的在于控制地方官僚权力，保护下层民众权利，维护周王室统治。行政诉讼制度起源于英格兰普通法，最初是为了推行国王中央法令，控制地方诸侯权力，维护王室利益，后来随着贵族在议会对国王斗争的胜利，普通法院才作出限制王权的判决。西周时期民告官机制与英格兰早期行政诉讼高度相似，不失为行政诉讼制度的一个萌芽。不仅《周礼》规定了民告官机制，西周时期还出现了民告官案件。1975 年 2 月，陕西省岐山县出土的"（亻朕）匜"铭文记载了一起民告官案件：牧牛坚持起诉其长官亻朕，案子最后到达朝廷，伯扬父处理这个案子，牧牛因违背誓约而败诉，并承担不利后果。[10]这起案件发生在西周晚期，当时政治腐败，民众反叛。牧牛起诉其长官，极有可能是因为其长官滥用权力。这个案子由最高权力处理，并铸成铭文，说明该案对周王非常重要，它不只涉及个人财产，还涉及统治秩序和行政权力。在行政诉讼案件中，个人诉政府，权利对抗权力，是二元对立，相当于《周易》的"阴阳相薄"、"龙战于野"或"自下讼上"。在法治国家，公务员若被辞退，则可提起行政诉讼，因为其个人权利受到政府权力侵犯。牧牛认为其个人权利受到其长官权力侵犯，寻求司法救济，是自下讼上，可以视为行政诉讼案件的雏形。

第三，行政诉讼与民事诉讼具有内在联系。民事诉讼是个人之间因契约不明、诚信缺失而引起的。个人与政府之间也存在契约和诚信问题。1215 年《大宪章》是贵族逼迫国王签署的契约，其中最后一条要求国王诚实信用地遵守各项条款。17 至 18 世纪，启蒙思想家霍布斯、洛克、卢梭等人阐述了社会契约学说：为了保护生命和财产，人们签订契约，成立政府，如果统治者违背契约，人民有权推翻政府。在行政法领域，个人面对的是政府的行政分支，同样存在契约和诚信问题，其中最典型的是行政合同，个人与行政机关

签订合同，各自诚实信用地向对方提供服务、财产或资金，行政机关虽然享有行政优益权，但是也须承担相应责任。即便在行政处罚领域，也存在契约和诚信问题，例如，现行《行政处罚法》第五条规定，行政处罚必须与违法行为的社会危害程度相当，这是政府与个人之间的一项契约，该契约在酒后驾车问题上体现为：酒后驾车要被罚款和暂扣驾照。如果有人酒后驾车，试图只交罚款而保留驾照，那就违反契约，没有诚信。同理，如果政府对酒后驾车追究刑事责任，那也违反契约，没有诚信。因此，行政诉讼与民事诉讼一样，其根源和原因也是契约不明、诚信缺失。就我国行政诉讼立法而言，江平教授是民法领域的权威专家，早年起草《民法通则》，后来被任命为《行政诉讼法》立法小组组长，现行《行政诉讼法》第一百零一条仍然规定："本法没有规定的，适用《民事诉讼法》相关规定。"行政诉讼与民事诉讼一样，都是为了保护财产权和人身权，只是行政诉讼针对的是政府，民事诉讼针对的是他人或除政府之外的组织。在一定意义上，行政诉讼是民事诉讼的衍生物或特殊形式。

二、讼卦对行政诉讼的态度

讼卦对行政诉讼的基本态度体现在卦辞"中吉，终凶"中，对于当事人，即便诉讼中途是吉利的，其结局也是凶险的，因而最好的情况是无讼。当过鲁国大司寇的孔子曾说："听讼，吾犹人也，必也使无讼乎！"[11]为了达到无讼，就要作事谋始，制定制度，明确契约。（《周易注》，第 41 页）如果不得已进入诉讼，那么应当在诉讼过程中及时止讼，寻求妥协、和解，这就是"中吉"的要义。最坏的情况是好讼，穷尽诉讼，这就是"终凶"的要义。

讼卦对行政诉讼的具体态度体现在六爻中。初六与九四为正应，王弼认为初六"四召而应，见犯而讼"，九四"处上讼下"（《周易注》，第 41、42 页），卢氏、侯果也持相似观点（《周易集解纂疏》，第 122、125 页）。九二与九五为敌应，九二"自下讼上，患至掇也"，其中"上"当指九五。六三与上九为正应，六三"从上吉也"，六三顺从上九，而上九好讼，反讼六三。邱富国曰："独上九处卦之穷，下与三对，柔不能抗，故有锡鞶带之辞焉。"[12]可见，正应或敌应的两爻构成诉讼的两造，故六爻构成三对诉讼，即有三种情形：

第一，初六对九四。"初六，不永所事，小有言，终吉。"不长久于讼事，小有争讼，辩明是非，最终吉利。关于"小有言"之"言"，虞翻认为"初、四易位成震言"

（《周易集解纂疏》，第 122 页），卢氏释为“小有讼”（《周易集解纂疏》，第 122 页），王弼注为“处讼之始”（《周易注》，第 41 页），孔颖达疏为“讼事尚微”[13]，来知德注为“言语之辩白”[14]，尚秉和认为“有言即讼也”[15]。“言”当为“讼”，初六阴在阳位，避讳诉讼，正如本爻用“事”代“讼”。“九四，不克讼，复即命，渝，安贞吉。”没有胜诉，回来遵从判决，改变心态，安贞则吉。关于“复即命”之“命”，虞翻认为“变而成巽，巽为命令”（《周易集解纂疏》，第 125 页），王弼注为“本理”（《周易注》，第 42 页），程颐释为“正理”[16]，来知德注为“天命之正理”[17]。“命”当为判决，判决是大司寇代表君王作出的决定，对当事人而言就是命令，如果判决是公正的，就必然包含正理。在初四之讼中，因为讼事耗费时间和精力，原告没有长期诉讼，在诉讼之初（如初审）就把事理讲明，把诉讼作为达到公正目的的手段，及时止讼，这样结果就吉利；被告非理侵犯原告，没有胜诉，服从判决，安于守正，也会吉利。

第二，九二对九五。“九二，不克讼，归而逋，其邑人三百户，无眚。”大夫没有胜诉，回来隐匿起来，他的三百户邑人没有受到株连，因而没有灾祸。《象传》“患至掇也”之“掇”，主要有两种解释：第一种是拾取，如荀爽曰：“下与上争，即取患害，如拾掇小物而不失也。”（《周易集解纂疏》，第 123 页）这种解释表明，无论下级是否有理，只要自下讼上就有灾患，如此彻底否定自下告上，显然与路石、登闻鼓制度相冲突。第二种是辍止，如尚秉和曰：“若作辍，则正释逋义也，逋而辍讼，讼止故无眚。”[18]这种解释强调止讼，既与爻辞“无眚”相符，又与卦辞“中吉”一致，因而更加合理。“九五，讼，元吉。”这里“讼”有两种理解：一是治讼，例如，王肃曰：“以中正之德，齐乖争之俗，元吉也。”（《周易集解纂疏》，第 125 页）侯果曰：“大人，谓五也，断决必中，故利见也。”（《周易集解纂疏》，第 120 页）王弼曰：“处得尊位，为讼之主，用其中正，以断枉直。”（《周易注》，第 42 页）朱熹虽也解“讼”为“听讼”，但占断结果指向诉讼一方：“讼而有理，必获伸矣。”[19]二是诉讼，如王夫之曰：“刚健中正，初无失德，虽为下所讼，无能为损，吉所固有也。”[20]九五之“讼”当指一方参与诉讼，理由有三：其一，九二与九五敌应，是相互冲突的两造，如果九二是原告，九五就是被告。其二，爻辞“讼，元吉”，“讼”只是诉讼、起诉，主持断案则是“听讼”，西周已有“听讼”之词。其三，九五元吉，是因为“中正”，公正无私，正当行使权力，作为被告的地方长官犹如乾卦九五之“飞龙在天”，既“元吉”又“利见大人”。地方长官处

理公共事务，例如修建水渠，如果他听取百姓意见，满足百姓需求，那么他在该事项上就是九五。如果有人认为修建水渠侵犯其利益（如占用其田地），上告到朝廷，天子行使权力，公正处理该争议，这时天子就是九五。乾卦九五既可以是行使行政权，也可以是行使司法权，而本卦九五显然是指地方长官行使行政权。在二五之讼中，原告大夫是“有孚”之人，最初以为地方长官侵犯其利益，在败诉后认识到自身过错，回来躲藏起来，如此，尽管败诉，也没有严重后果；被告是“中正”之人，正当行使权力，即便被诉，也会胜诉，因而吉利。

第三，六三对上九。“六三，食旧德，贞厉，终吉；或从王事，无成。”享受原先俸禄，坚守正道，虽有危险，最终吉利；设或事奉君王，要归功于上，这样才能善终。关于“食旧德”，虞翻认为“乾为旧德”（《周易集解纂疏》，第 124 页），李道平疏为“食父故禄也”（《周易集解纂疏》，第 124 页），王弼注为“顺于上，不为九二自下讼上”（《周易注》，第 42 页），程颐释为“禄者称德而受。食旧德，谓处其素分”[21]，朱熹解为“食，犹食邑之食，言所享也”[22]，各家解释大体一致：俸禄来自君王，臣民根据功德而享受俸禄；享受原先俸禄，即顺从君王，安守本分。“上九，或锡之鞶带，终朝三褫之。”设或因胜诉而受赐命服，也会在一天之内被褫夺三次。好讼获胜，不是给他人带来福利，而是夺走他人财产，如果因此而受赐，也不足以令人敬佩。虞翻认为“锡谓王之锡命”（《周易集解纂疏》，第 126 页），荀爽认为褫夺者为“君”（《周易集解纂疏》，第 126 页），故赐予及剥夺命服的是君王。在三上之讼中，原告安守本分，避免诉讼，不得已才卷入诉讼，只为保全原有利益，别无他求；被告争强好胜，以讼为乐，以胜为荣，虽然暂时加官进爵，但终会失去权力，因为与下争利不是政绩，造福黎民才是为政之本。在三上之讼中，原告始“厉”终“吉”，而被告始“锡”终“褫”，被告虽然诉讼获胜，但由于违背天道和正理，最终也会失败，因而凶险。由此可见，通过诉讼，当事人可以维持旧的利益，但不能获得新的利益，换言之，诉讼价值在于保护权利，而非扩张权利。

三、讼卦对行政诉讼的启示

讼卦对行政诉讼有所启示，理由有三：其一，从《周易》本身看，《系辞传》曰：“天垂象，见吉凶，圣人象之。”上天告诉人们天道和正理，是通过形象。[23]圣人如何“象之”呢？《系辞传》又曰：“圣人设卦，观象，系辞焉，而明吉凶。”如何“设卦”

呢？《系辞传》又曰："极其数，遂定天下之象。"用于摹仿天象的卦爻象源自大衍筮法所得的四个数字（六七八九），因而卦爻象是普世的，是跨越文明的。如果今日西方出现圣人，不识汉字，不了解文王周公所系的卦爻辞，仅仅根据卦爻象，也可能写出符合天道的卦爻辞。文王周公是历史人物，他们所系的卦爻辞是那个时代的产物，卦爻辞所指的事物（如邑人、鞶带）可能已经不复存在，但由于卦爻辞所反映的天道和正理是永恒的，是超越历史的，只要对卦爻辞进行适当解释，例如把"邑人"类比为家人，把"鞶带"泛化为利益，就能适用当下。就讼卦而言，卦爻象和卦爻辞反映的都是行政诉讼的正理，例如，在讼卦六爻所构成的三对诉讼中，每对诉讼的双方各有胜败，当然，胜败与吉凶并非一回事，吉凶不仅与案件客观情况有关，还取决于当事人主观态度。其二，从历史传承看，文王周公所处的时代是制度和文化的重大转型期，西周在取代殷商后实行分封制，文王周公所作的《周易》包含治国安邦的根本思想，秦王统一六国，焚书坑儒，《周易》是唯一未经秦火的经典，此后两千多年各朝沿用郡县制，并延续《周易》传统。《周易》能否适用现行体制、指导当下实践？现行体制对郡县制的承继，应当不少于郡县制对分封制的承继，《周易》既然能适用郡县制，就能适用现行体制。事实上，中央政府一直号召弘扬传统文化，《周易》作为传统文化之源，理应指导当下实践。柏克和潘恩关于法国大革命有过激烈的争辩，柏克基于英格兰渐进式宪政背景，认为法国大革命不仅摧毁了旧制度，还破坏了文化传统。[24]法国经过一个半世纪的政治风波，在二战后才确立稳定的民主制度，相比之下，重视历史传统的英国就幸运多了。就讼卦而言，其无讼思想不仅适用郡县制，也适用现行体制。其三，从现实情况看，我国行政诉讼存在很多问题，如何解决这些问题，我们有两个经验来源，一是其他文明的优秀成果，二是传统文化的精华部分。最近几十年，法学研究热衷以西方经验观照中国现实，取得不少成果，但是西方模式本身也存在一些问题，例如，法院积压大量案件，无法及时处理。我们亟待挖掘传统文化精髓，为处理现实问题提供借鉴。就讼卦而言，行政官员或法官行使权力，都要"中正"，如果行政官员"中正"，就不会有行政争议，如果法官"中正"，行政争议就能得到公正处理，这种整体思维有助于解决现实问题。

我国行政诉讼存在的具体问题涉及原告、被告和法官三个方面，接下来从这三个方面探讨讼卦对行政诉讼的启示。

第一，在原告方面。其一，讼卦初六“不永所事，小有言，终吉”，原告没有必要执念于诉讼，只要在诉讼之初把事理讲明，及时止讼，最终才吉利。现实中有的原告好讼、穷讼，就一个诉讼目的发动多起诉讼，而其中大多数诉讼对其诉讼目的没有实质帮助，原告还把所有诉讼坚持到底，因而最后结局凶险。其二，讼卦九二“不克讼，归而逋，其邑人三百户，无眚”，原告在败诉后，应当回去反省自身，审时度势。现实中有的原告输了官司，通过信访及网络引起中央和舆论关注，这样贸然行动，可能招致灾难，甚至牵连亲人。其三，讼卦六三“食旧德，贞厉，终吉”，安守本分，没有过分要求，最终才会吉利。现实中有的原告提出过分请求，例如，地方政府开发城市郊区集体土地，征收房屋以集体土地标准予以补偿，但是有的原告要求以国有土地标准进行补偿，国有土地标准不是房屋的原有价值，原告的主张是过分的，最终必然败诉。

第二，在被告方面。其一，讼卦九四“不克讼，复即命，渝，安贞吉”，被告输了诉讼，如果服从判决，改变心态，就会吉利。现实中政府在败诉后，有时不愿承认错误，不想履行判决，这样结局就会凶险，我国《行政诉讼法》第九十六条规定了行政机关拒绝履行判决的法律后果，其中包括刑事责任。其二，讼卦九五“讼元吉”，被告正当行使权力，非常吉利。现实中政府有时确实没有滥用权力，其所作所为符合法律规定和法律原则，这样即使被行政相对人起诉，最终也会胜诉。其三，讼卦上九“或锡之鞶带，终朝三褫之”，因诉讼而受到上级赏赐，不是长久之道。现实中政府有时不仅阻碍当事人起诉，还反过来控诉当事人犯罪，常见作法是指控当事人“寻衅滋事”，如果政府指控得到法院支持，可能符合一时政策，但违背自然正义，最终会被否定。

第三，在法官方面。讼卦九五“讼元吉”的“中正”思想是行使任何权力的基本要求，不仅适用行政官员，也适用法官。法官处理行政争议，需要听取双方意见，并且不要牵扯自身利益。司法权的行使应当独立于行政权，而且在全国范围内应当统一，但我国司法存在行政化和地方化弊病，各级法院在一定程度上受制于各级政府，法院独立性相当有限。我国当下正在推广枫桥经验，一方面，枫桥经验之调解方式蕴含无讼思想，有利于节约司法资源和节省诉讼成本；另一方面，枫桥经验之群众路线与法治精神存在一定张力，可能加剧司法行政化和地方化。

[1] 杨永林《〈周易〉讼卦与中国古代的诉讼观念》，载《周易研究》2008 年第 6 期，第 81 页。

[2] 方潇《讼卦之“讼”辩正》，载《法制与社会发展》2011 年第 5 期，第 131 页。

[3] 李平《重估中国法文化中的“讼”——以〈周易〉讼卦为中心》，载《苏州大学学报》2021 年第 2 期，第 53 页。

[4] [清]段玉裁《说文解字注》，北京：中华书局，2013 年，第 100 页。

[5] [清]孙诒让《周礼正义》，北京：中华书局，2013 年，第 762 页。下引该书，仅随文标注书名与页码。

[6] [清]李道平《周易集解纂疏》，北京：中华书局，1994 年，第 119 页。下引该书，仅随文标注书名与页码。

[7] 于豪亮《马王堆帛书周易释文校注》，上海：上海古籍出版社，2013 年，第 126 页。

[8] [魏]王弼《周易注》，北京：中华书局，2011 年，第 41 页。下引该书，仅随文标注书名与页码。

[9] 尚秉和《周易尚氏学》，北京：中华书局，1980 年，第 54 页。

[10] 刘海年《（亻朕）匜铭文及其所反映的西周刑制》，载《法学研究》1984 年第 1 期，第 81 页。

[11] 杨伯峻《论语译注》，北京：中华书局，2009 年，第 126 页。

[12] [清]李光地《周易折中》，中华书局，2022 年，第 102 页。

[13] [魏]王弼、[晋]韩伯康注 [唐]孔颖达疏《宋本周易注疏》，北京：中华书局，2018 年，第 73 页。

[14] [明]来知德《周易集注》，北京：中华书局，2019 年，第 224 页。

[15] 尚秉和《周易尚氏学》，第 55 页。

[16] [宋]程颐《周易程氏传》，北京：中华书局，2011 年，第 39 页。

[17] [明]来知德《周易集注》，第 227 页。

[18] 尚秉和《周易尚氏学》，第 55 页。

[19] [宋]朱熹《周易本义》，北京：中华书局，2009 年，第 61 页。

[20] [清]王夫之《周易内传》，北京：中国社会科学出版社，2021 年，第 104 页。

[21] [宋]程颐《周易程氏传》，第 39 页。

[22] [宋]朱熹《周易本义》，第 61 页。

[23] 《诗经》有上帝对文王的讲话，例如，《诗经·皇矣》曰：帝谓文王，予怀明德，不大声以色，不长夏以革，不识不知，顺帝之则。参见[清]方玉润《诗经原始》，北京：中华书局，1986 年，第 490 页。

[24] 参见[英]柏克著，何兆武译《法国革命论》，北京：商务印书馆，1998 年，第 104-105 页。